

## TENTATIVE RULING

**Case:** Vorhees v. Sequeira  
Case No. CV2026-0729

**Hearing Date:** April 29, 2026 **Department Eleven** **9:00 a.m.**

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### **Demurrer:**

Respondent Martha Sequeira and real party County of Yolo's (collectively, the "County") request for judicial notice is **GRANTED IN PART**. (Evid. Code, §§ 452, 453.) While the Court takes judicial notice of Exhibit E, the Court declines to take judicial notice of the other documents because they are irrelevant to the resolution of the County's demurrer. (*Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825 ["Any matter to be judicially noticed must be relevant to a material issue"].)

The County's demurrer to plaintiff James Patrick Vorhees' petition is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) First, the petition does not allege how plaintiff is beneficially interested in the relief sought. (Code Civ. Proc., § 1086; *Ex parte Levitt* (1937) 302 U.S. 633; *Save the Plastic Bag Coalition v. City of Manhattan Beach* (2011) 52 Cal.4th 155, 165.) Second, while the petition requests Sequeira's compliance with S.B. 60, this bill never became law. (The County's RJN, Exhibit E.) The Court does not permit leave to amend as there is no reasonable possibility that plaintiff can amend his petition to state these claims against the County. (*Virginia G. v. ABC Unified School Dist.* (1993) 15 Cal.App.4th 1848, 1852.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

### **Compelling client records:**

Plaintiff James Patrick Vorhees' motion for order compelling former attorney to surrender client records and property is **DENIED**. First, plaintiff did not timely file this motion, based on the April 21, 2026, hearing date. (Code Civ. Proc., § 1005, subd. (b).) Second, although plaintiff states that he filed a memorandum of points and authorities with his motion, plaintiff did not file a supporting memorandum. (Cal. Rules of Court, rule 3.1113(a).) Therefore, the Court construes "the absence of a memorandum as an admission that the motion...is not meritorious and cause for its denial." (*Ibid.*)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

### **Reviewing hearing:**

As the Court is sustaining the County's demurrer without leave to amend, the review hearing is **VACATED AS MOOT.**